



Tulsa Metropolitan Area Planning Commission

Minutes of Meeting No. 2961

Wednesday, May 20, 2026, 1:00 p.m.

Tulsa City Council Chambers, 175 E. 2nd St., Tulsa, OK 74103

The notice and agenda of said meeting were posted in the City Clerk's and the County Clerk's office on May 13, 2026, at 3:11 p.m.

Members Present: Bulmash, Hood, Humphrey, Krug, Shivel, Walker, Whitlock

Members Absent: Craddock, Cue, Fugate, Turner-Addison

Staff Present: Austin Chapman, Nathan Foster, Erica Grayson, Erin Roark, Susan Miller, Kim Sawyer,

County Staff Present: Kendal Davis, Javier Villarroel Rojas

Speaker Key:

- (+) indicates a speaker generally supportive of an item;
- (-) indicates a speaker generally opposed to an item; and
- (=) indicates a speaker generally neutral or who has questions about an item.

After declaring a quorum present, Chair Walker called the meeting to order at 1:00 p.m.

Reports

Chairman's Report: None

Director's Report: Ms. Miller reported on City Council actions.

Approval of Minutes

1. Minutes from Meeting 2960, May 6, 2026

Motion: Approval of the minutes of Meeting 2960 of May 6, 2026.

Motion by: Bulmash **Second by:** Shivel

Vote: 7-0-0

Ayes: Bulmash, Hood, Humphrey, Krug, Shivel, Walker, Whitlock

Nays: none

Abstentions: none

Absent: Craddock, Cue, Fugate, Turner-Addison

Consent Agenda

2. **PUD-236-B-6**

Location: 7807 East 76th Street

City Council District: 8

Applicant: Wallace Design Collective, Mike Thedford

Action Requested: PUD Minor Amendment to reduce the required 125-foot side setback

Staff Recommendation

The applicant is proposing a minor amendment to PUD-236-B to reduce the required setback from the western property line from 125 feet to 90 feet to permit the addition of a new canopy structure on the western side of the church building.

The minor amendment would still maintain a significant setback of 90 feet from the western property line which exceeds the typical setbacks applicable to similar uses in other areas of the city.

The original PUD was approved in 1983 and permitted use of the property as a religious assembly subject to a set of development standards. All other original development standards will remain in place and are not altered by the requested minor amendment.

Staff has reviewed the request and determined:

- 1) PUD-236-B-6 is consistent with the provisions for administration and procedures of a PUD in section 30.010-H.
- 2) PUD-236-B-6 does not represent a significant departure from the approved development standards in the PUD and is considered a minor amendment to PUD-236-B.
- 3) All remaining development standards defined in PUD-236-B and subsequent amendments remain in effect.

With consideration given to the factors listed herein, staff recommends **approval** of the application.

Comprehensive Plan Considerations

Land Use Plan

The subject property is designated as neighborhood. **Neighborhoods** are mostly residential uses, which includes detached, missing middle, and multi-dwelling unit housing types. Churches, schools, and other low intensity uses that support residents' daily needs are often acceptable, particularly for properties abutting Multiple Use, Local Center, or Regional Center land use areas. Multi-dwelling unit housing that takes access off an arterial is considered Multiple Use, Local Center, or Regional Center. If a multi-dwelling unit housing property takes access from a lower-order street separated from the arterial, then it would be considered Neighborhood.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	AG	Park and Open Space	Leake Park
East	OL, RS-3, PUD-236-B, PUD-236-C	Multiple Use	Assisted Living
South	RS-3	Neighborhood	Residential
West	RS-3	Neighborhood	Residential

Small Area Plans

The subject properties are not located within any adopted small area plans.

Development Era

The subject property is in an area developed during the Late Automobile Era (1950s-present), which has grown since the mainstreaming of automobile-centric lifestyles, with a high degree of separation between residential and nonresidential uses, and low levels of street connectivity. In these areas, transportation is nearly exclusively concentrated on the mile-by-mile arterial grid, and major streets are often both transportation corridors and destination corridors, which can lead to traffic congestion. Nonresidential uses are predominantly located at the intersections of major arterial streets. Priorities in these areas include commercial revitalization, placemaking, community gathering opportunities, conservation of natural areas, a high degree of privacy, one-stop shopping, and commuting routes.

Transportation

Major Street & Highway Plan: East 76th Street South is designated as a residential collector.

Comprehensive Plan Street Designation: N/A

Transit: N/A

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: Signed route is planned along East 76th Street South

Environmental Considerations

Flood Area: The subject property contains City of Tulsa Regulatory Floodplain along the eastern edge. The floodplain area is not affected by the proposed addition included with the application.

Tree Canopy Coverage: Tree canopy in the area is 15%. Preserving the limited existing canopy should be encouraged, as well as measures to increase the canopy through landscaping. Street-lining trees in particular should be encouraged to spread the benefit of the tree canopy to the pedestrian realm.

Parks & Open Space: Leake Park is a public park located adjacent to the subject property on the north side.

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Property Description

Lot One (1), Block One (1), CHRISTIAN CHAPEL, an addition to the City of Tulsa, Tulsa County, State of Oklahoma, according to the recorded Plat thereof

Commission Action

Motion: Recommend approval of PUD-236-B-6, per staff's recommendation.

Motion by: Humphrey Second by: Whitlock

Vote: 7-0-0

Ayes: Bulmash, Hood, Humphrey, Krug, Shivel, Walker, Whitlock

Nays: none

Abstentions: none

Absent: Craddock, Cue, Fugate, Turner-Addison

DRAFT

Public Hearing - Rezoning

3. **Z-7852** (Continued from April 1, 2026, and April 20, 2026)

Location: West of the northwest corner of East 119th Street South and South Yale Avenue

City Council District: 8

Applicant: Nathan Cross

Action Requested: Rezoning from RS-1 to RS-1 with an optional development plan

Staff Recommendation

The applicant is proposing a development plan to permit the properties under application to be served by private streets. The private street proposal would be an extension of the Wind River Plaza subdivision immediately to the south. The two lots under application were not owned by the developer at the time the previous rezoning and subdivision plat were developed but have since been acquired.

The developer is proposing to extend the private street system from Wind River Plaza to the eastern boundary of the newly proposed development plan. The Tulsa Zoning Code requires approval of a development plan for any lot to be served by private streets. The applicant is not requesting any changes to the underlying RS-1 zoning, and all standards would remain the same.

East 119th Street is a dead-end street that does not connect to any other public streets. Allowing the extension of the private street system would not cause any detriment to the surrounding area and would be consistent with the development pattern in the area which already includes two subdivisions served by private streets.

With consideration given to the factors listed herein, staff recommends **approval** of the application with the conditions of the development plan outlined below.

Z-7852 Development Standards

The site shall be subject to all regulations of the RS-1 district of the Tulsa Zoning Code, except as noted below:

General Provisions:

Lots within the boundary of Z-7852 may be served by private streets subject to the requirements of Section 5-060.8 of the Subdivision and Development Regulations.

Comprehensive Plan Considerations

Land Use Plan

The subject property is designated as Neighborhood. **Neighborhoods** are mostly residential uses, which includes detached, missing middle, and multi-dwelling unit housing types. Churches, schools, and other low intensity uses that support residents' daily needs are often acceptable, particularly for properties abutting Multiple Use, Local Center, or Regional Center land use areas. Multi-dwelling unit housing that takes access off an arterial is considered Multiple Use, Local Center, or Regional Center. If a multi-dwelling unit housing property takes access from a lower-order street separated from the arterial, then it would be considered Neighborhood.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	RS-1	Neighborhood	Residential
East	RS-1	Neighborhood	Residential
South	RS-4, Z-7588	Neighborhood	Residential

West	RS-2, PUD-804	Neighborhood	Residential
------	---------------	--------------	-------------

Small Area Plans

The subject properties are not located within a designated Small Area Plans.

Development Era

The subject property is in an area developed during the Late Automobile Era (1950s-present), which has grown since the mainstreaming of automobile-centric lifestyles, with a high degree of separation between residential and nonresidential uses, and low levels of street connectivity. In these areas, transportation is nearly exclusively concentrated on the mile-by-mile arterial grid, and major streets are often both transportation corridors and destination corridors, which can lead to traffic congestion. Nonresidential uses are predominantly located at the intersections of major arterial streets. Priorities in these areas include commercial revitalization, placemaking, community gathering opportunities, conservation of natural areas, a high degree of privacy, one-stop shopping, and commuting routes.

Transportation

Major Street & Highway Plan: N/A

Comprehensive Plan Street Designation: N/A

Transit: N/A

Existing Bike/Ped Facilities: Sidewalk along E 119th St.

Planned Bike/Ped Facilities: A side path is planned along E 121st St South.

Environmental Considerations

Flood Area: The subject properties are not located within any designated floodplain areas.

Tree Canopy Coverage: Tree canopy in the area is 10%. Preserving the limited existing canopy should be encouraged, as well as measures to increase the canopy through landscaping. Street-lining trees in particular should be encouraged to spread the benefit of the tree canopy to the pedestrian realm.

Parks & Open Space: N/A

Zoning History

Ordinance 11832, dated June 26, 1970, established zoning for the subject property.

TMAPC Comments

None

Applicant Comments

The applicant stated that neighbors and the applicant had reached an agreement that would allow residents of the adjacent neighborhoods to have key fob access to the gate.

Speakers

None.

Commission Action

Motion: Recommend approval of the RS-1 zoning with the optional development plan, per staff's recommendation.

Motion by: Shivel

Second by: Humphrey

Vote: 7-0-0

Ayes: Bulmash, Hood, Humphrey, Krug, Shivel, Walker, Whitlock

Nays: none

Abstentions: none

Absent: Craddock, Cue, Fugate, Turner-Addison

Property Description**4619 E 119th ST S TULSA, OK 74137**

PER GENERAL WARRANTY DEED DATED AND FILED OF RECORD ON NOVEMBER 18, 2021 AS DOC# 2021133047 IN THE COUNTY OF TULSA RECORDS:

A TRACT OF LAND IN THE SOUTHEAST QUARTER (SE/4) OF SECTION THIRTY-THREE (33), TOWNSHIP EIGHTEEN (18) NORTH, RANGE THIRTEEN (13) EAST OF THE INDIAN BASE AND MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE U.S. GOVERNMENT SURVEY THEROF, MORE PARTICULARLY DESCRIBED AS FOLLOWS, TO WIT:

BEGINNING AT A POINT 345.0 FEET WEST OF THE EAST LINE AND 165.0 FEET SOUTH OF THE NORTH LINE OF THE N/2 NE/4 SE/4 SE/4 OF SECTION 33, TOWNSHIP 18 NORTH, RANGE 13 EAST; THENSE SOUTH 89°57'45" WEST A DISTANCE OF 145.0 FEET; THENCE SOUTH 0°02' EAST A DISTANCE OF 140.06 FEET; THENCE NORTH 89°57' 32" EAST A DISTANCE OF 145.0 FEET; THENCE NORTH 0°02' WEST A DISTANCE OF 140.05 FEET TO THE POINT OF BEGINNING.

4609 E 119th ST S TULSA, OK 74137

PER GENERAL WARRANTY DEED DATED JUNE 2, 2025 AND FILED OF RECORD ON JUNE 6, 2025 AS DOC# 2025048998 IN THE COUNTY OF TULSA RECORDS:

A TRACT OF LAND IN THE SOUTHEAST QUARTER (SE/4) OF SECTION THIRTY-THREE (33), TOWNSHIP EIGHTEEN (18) NORTH, RANGE THIRTEEN (13) EAST OF THE INDIAN BASE AND MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE U.S. GOVERNMENT SURVEY THEROF, MORE PARTICULARLY DESCRIBED AS FOLLOWS, TO WIT:

BEGINNING AT A POINT 490.0 FEET WEST OF THE EAST LINE AND 165.0 FEET SOUTH OF THE NORTH LINE OF THE N/2 NE/4 SE/4 SE/4 OF SEC. 33, T-18-N, R-13-E; THENSE SOUTH 89°57'45" WEST A DISTANCE OF 145.185 FEET; THENCE SOUTH 0°02'6.25" EAST A DISTANCE OF 140.07 FEET; THENCE NORTH 89°57' 32" EAST A DISTANCE OF 145.18 FEET; THENCE NORTH 0°02' WEST A DISTANCE OF 140.06 FEET TO THE POINT OF BEGINNING.

E 119th ST RIGHT-OF-WAY

A TRACT OF LAND THAT IS A PART OF THE EAST HALF OF THE SOUTHEAST QUARTER OF THE SOUTHEAST QUARTER (E/2 SE/4 SE/4) OF SECTION THIRTY-THREE (33), TOWNSHIP EIGHTEEN (18) NORTH, RANGE THIRTEEN (13) EAST OF THE INDIAN MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE U.S. GOVERNMENT SURVEY THEREOF, TRACT BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHWEST CORNER OF LOT ONE (1) BLOCK ONE (1), "WIND RIVER PLAZA", A SUBDIVISION WITHIN THE CITY OF TULSA, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE RECORDED PLAT THEREOF (PLAT NO. 7117), SAID CORNER BEING ON THE EAST LINE OF "WIND RIVER CROSSING", A SUBDIVISION WITHIN THE CITY OF TULSA, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE RECORDED PLAT THEREOF (PLAT NO. 6605); THENCE NORTH 1°12'16" WEST AND ALONG SAID EAST LINE, FOR A DISTANCE OF 50.00 FEET TO A POINT ON THE NORTH LINE OF A 25 FOOT RIGHT-OF-WAY AS RECORDED AT BOOK 3696 PAGE 546, TULSA COUNTY, STATE OF OKLAHOMA; THENCE NORTH 88°51'15" EAST AND ALONG SAID NORTH LINE, FOR A DISTANCE OF 318.31 FEET; THENCE SOUTH 1°08'45" EAST FOR A DISTANCE OF 50.00 FEET TO A POINT ON THE SOUTH LINE OF SAID 25 FOOT RIGHT-OF-WAY RECORDED AT BOOK 6511 PAGE 2163, TULSA COUNTY, STATE OF OKLAHOMA; THENCE SOUTH 88°51'15" WEST AND ALONG SAID SOUTH LINE FOR A DISTANCE OF 318.25 FEET TO THE POINT OF BEGINNING;

4. Z-7861

Location: South of the southeast corner of East Newton Street and North Oswego Avenue

City Council District: 3

Applicant: Lee Simon Design

Action Requested: Rezoning from RS-3 to MX1-F-35

Staff Recommendation

The applicant is proposing to rezone the subject property from RS-3 to MX1-F-35 to permit a mixed-use development including townhomes with the potential for small-scale commercial uses.

The property is slightly under one acre in size and currently contains a single detached house. The applicant's primary proposal is a new townhouse development with the possibility of incorporating a small coffee shop/restaurant.

The proposed MX district would permit a range of new housing types including the proposed townhomes while also allowing the implementation of commercial uses within mixed-use buildings. MX1 is considered a neighborhood-scale mixed-use district and limits the allowable commercial uses to lower intensity commercial uses that would be compatible with the surrounding neighborhood areas.

The requested zoning request also includes a maximum building height of 35 feet which aligns with the maximum building height permitted in all residential zoning districts and matches what would be allowed on the lot today under the RS-3 zoning. The MX districts also apply additional building standards such as build-to zones, ground floor ceiling heights, and transparency requirements.

MX1 is consistent with the neighborhood land use designation by limiting the commercial uses to low intensity uses as suggested in the description of the neighborhood land use designation. It would also permit a range of residential uses either as standalone uses or within mixed-use buildings.

With consideration given to the factors listed herein, staff recommends **approval** of the application.

Comprehensive Plan Considerations**Land Use Plan**

The subject property is designated as neighborhood. **Neighborhoods** are mostly residential uses, which includes detached, missing middle, and multi-dwelling unit housing types. Churches, schools, and other low intensity uses that support residents' daily needs are often acceptable, particularly for properties abutting Multiple Use, Local Center, or Regional Center land use areas. Multi-dwelling unit housing that takes access off an arterial is considered Multiple Use, Local Center, or Regional Center. If a multi-dwelling unit housing property takes access from a lower-order street separated from the arterial, then it would be considered Neighborhood.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	RS-3	Neighborhood	Neighborhood
East	RS-3	Neighborhood	Neighborhood
South	RS-3	Neighborhood	Neighborhood
West	RS-3	Neighborhood	Neighborhood

Small Area Plans

The subject property is located in the Sequoyah Area Neighborhood Implementation Plan (2006).

Development Era

The subject property is in an area developed during the Early Automobile Era (1930s-50s), which retained a high degree of connectivity from neighborhood streets to the arterial network, with mostly commercial, office, industrial, and other active uses along major streets and a mix of housing options and neighborhood-based uses like schools, churches, and libraries in the interior sections. Priorities in these areas include walkability, bikeability, access to public transit, historic preservation, housing type variety, mixed-use development, commercial revitalization, compatibility of scale for neighborhood development, and transitions between commercial corridors and residential areas.

Transportation

Major Street & Highway Plan: N/A

Comprehensive Plan Street Designation: N/A

Transit: N/A

Existing Bike/Ped Facilities: N/A

Planned Bike/Ped Facilities: Sidewalks are planned along all public streets in the City of Tulsa.

Environmental Considerations

Flood Area: N/A

Tree Canopy Coverage: Tree canopy in the area is 30%. Significant effort should be given to the preservation of mature stands of trees. Tree canopy removal should be minimized, and replacement of trees that need removing should be encouraged.

Parks & Open Space: N/A

Zoning History

Ordinance 11809, dated June 26, 1970, established zoning for the subject property.

Speakers

(-) Evona Garner, 3525 East Latimer Place, Tulsa, OK 74115, would like to know the use of the property because she is concerned that the use may be invasive for a family neighborhood. She stated other things that concern her are the size of the project, hours of operations for the businesses and permeable surface to allow drainage.

TMAPC Comments

Mr. Bulmash stated he appreciates the speaker's concern but the multifamily could be done without the commercial use and it would still have the same impact on the impervious use. He stated as a Senior Advisor to the Mayor on housing, he hears a lot of requests and desires for walkability and neighborhood serving retail. He thinks this is something that a lot of the people in the community need.

Commission Action

Motion: Recommend approval of MX1-F-35 zoning, per staff's recommendation.

Motion by: Bulmash Second by: Whitlock

Vote: 7-0-0

Ayes: Bulmash, Hood, Humphrey, Krug, Shivel, Walker, Whitlock

Nays: none

Abstentions: none

Absent: Craddock, Cue, Fugate, Turner-Addison

Property Description

BEG SECR NE SE NW TH W131.53 N120 E131.53 S120 POB SEC 33 20 13 .36AC & LTS 1 THRU 4 BLK 1, FEDERAL HGTS SECOND ADDN AMD L1&36 B17 & B1-5&13

Section: 33 Township: 20 Range: 13

DRAFT

Items 5 and 12 were presented together. Planning Commission continued both items to June 3, 2026, to allow the applicant more time to meet with neighbors.

5. Z-7860 (Related to CPA-131) (Continued from May 6, 2026)

Location: East of the southeast corner of West Edison Street and North 41st West Avenue

City Council District: 4

Applicant: Darnell Blackmon

Action Requested: Rezoning from CS and RS-3 to CS

Staff Recommendation

The applicant is proposing to rezone the entire property to CS. The property is already partially zoned CS with the remaining areas zoned RS-3. The applicant would like to align the zoning on the entire site under one zoning district to permit commercial uses.

An optional development plan has been included with the application to rezone to ensure more compatibility between the subject property and the surrounding neighborhood areas. The optional development plan prohibits certain uses that would otherwise be permitted by right in the CS district and incorporates additional screening standards for property boundaries shared with residential areas.

The northern portion of the property is already zoned CS and has been used as a commercial property. A vacant building remains that previously operated as a restaurant. The applicant is proposing to use the property as an RV park that would not be permitted by right under the CS zoning. If the CS zoning is approved, an additional application will be required to be submitted to the City Board of Adjustment for consideration of the RV park proposal. The special exception application will require additional public hearings and notices to be provided to surrounding property owners. In reviewing special exception applications, the Board of Adjustment has the authority to approve, deny, or approve with conditions any uses proposed. The applicant will be required to provide a full site plan and details for consideration by the Board of Adjustment before an RV park could be permitted on the subject property.

The rezoning request was submitted with a concurrent comprehensive plan amendment (CPA-131) to amend the underlying land use from "Neighborhood" to "Multiple Use". The neighborhood land use designation is inconsistent with the existing commercial zoning on the property. In reviewing the request for the CPA, it was determined that a change to multiple use would be appropriate for the entire property given the size of the subject property, the historic use of the property, and the location along a designated secondary arterial.

CS zoning is consistent with the proposed multiple use designation.

With consideration given to the factors listed herein, staff recommends **approval** of the application subject to the optional development plan outlined below.

Z-7860 Development Standards

Property included within the boundary of Z-7860 is subject to all requirements of the CS zoning district with the exceptions outlined below:

The following listed uses are expressly prohibited by the development plan:

COMMERCIAL

Financial Services (Only uses listed below)
 Personal Credit Establishments
 Office (Only uses listed below)
 Plasma Center
 Parking, non-accessory
 Restaurants and Bars (Only uses listed below)
 Bar
 Retail Sales (Only uses listed below)
 Medical Marijuana Dispensary
 Sexually Oriented Business Establishment

Landscaping and Screening:

All commercial uses are required to install and maintain an F1 screen as defined in Chapter 65 of the Tulsa Zoning Code along the south and west boundaries of the development plan where adjacent to R-zoned property. F1 screening consists of one of the following options:

1. The installation of an opaque fence at least 6 feet in height and at least one tree per 25 linear feet of fence; or,
2. The installation of a masonry wall with a minimum height of 6 feet.

All commercial uses are required to install and maintain a S1 screen as defined in Chapter 65 of the Tulsa Zoning Code along the right-of-way of North 39th West Avenue. S1 screening requires shrubs planted to form a continuous visual barrier (hedge) at least 3 feet in height. A screening wall with a minimum height of 2.5 feet and a maximum height of 3 feet may be substituted for the shrubs. Walls used to satisfy S1 screening requirements must be constructed of brick, stone, cast stone, formed concrete or similar durable, low maintenance materials.

Comprehensive Plan Considerations

Land Use Plan

Existing:

Neighborhoods are mostly residential uses, which includes detached, missing middle, and multi-dwelling unit housing types. Churches, schools, and other low intensity uses that support residents' daily needs are often acceptable, particularly for properties abutting Multiple Use, Local Center, or Regional Center land use areas. Multi-dwelling unit housing that takes access off an arterial is considered Multiple Use, Local Center, or Regional Center. If a multi-dwelling unit housing property takes access from a lower-order street separated from the arterial, then it would be considered Neighborhood.

Proposed:

Multiple Use areas are mostly commercial or retail uses, which include restaurants, shops, services, and smaller format employment uses. This land use designation is most common in areas of the city from earlier development patterns, with Local Centers being more commonplace in newer parts of the city. For single properties that are commercial but surrounded by Neighborhood, Multiple Use is the preferred designation.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	CS	Local Center/Neighborhood	Commercial/Vacant
East	CS/RS-3	Neighborhood	Residential/Commercial
South	RS-3	Neighborhood	Residential

West	CS/RS-3	Neighborhood	Residential/Commercial
------	---------	--------------	------------------------

Small Area Plans

The subject property is located within the Charles Page Boulevard Small Area Plan.

Development Era

The subject property is in an area developed during the Streetcar Era (1910s-30s), prior to the proliferation of automobiles, when streetcars facilitated growth beyond downtown. Land uses range from fully integrated to somewhat separated, on a half-mile grid, with a mix of housing options. Priorities in these areas include walkability, bikeability, access to public transit, historic preservation, housing type variety, mixed-use development, transit-oriented development, commercial districts, and well-designed streetscapes.

Transportation

Major Street & Highway Plan: W Edison St is designated as a Secondary Arterial.

Comprehensive Plan Street Designation: N/A

Transit: N/A

Existing Bike/Ped Facilities: N/A

Planned Bike/Ped Facilities: A signed route is planned along W Edison St.

Environmental Considerations

Flood Area: N/A

Tree Canopy Coverage: Tree canopy in the area is 23%. Significant effort should be given to the preservation of mature stands of trees. Tree canopy removal should be minimized, and replacement of trees that need removing should be encouraged.

Parks & Open Space: N/A

Zoning History

Ordinance 11813, dated June 26, 1970, established zoning for the subject property.

Applicant Comments

Darnell Blackmon 8660 East 103rd Street, Tulsa, OK, 74133 stated he has spoken with some of the neighbors about their concerns. He stated he has tried to address these concerns in his plan.

Speakers

(-) JP Morrison, 618 North 41st West Avenue, Tulsa, OK 74127, concerned about overloading infrastructure and what a development of this scale will do to the neighborhood.

(-) Kellie Pendleton, President of the Neighborhood Association 540 North 33rd West Avenue, Tulsa, OK 74127, stated that Edison Street is a 2-lane street that has very narrow lanes that decrease in width at 33rd W Ave going west. She stated she has lived in the neighborhood her entire life and owns 5 rental properties. Ms. Pendleton stated that there is a petition to oppose the RV park circulating now. She said no one wants to live next to an RV Park and the stuff that comes with that. The applicant is calling this a luxury RV Park but over time in this neighborhood businesses tend to become eye sore such as old convenience stores that are no longer convenience stores. He wants it to be a luxury RV park but if you don't end up getting luxury vehicles to pay that,

then you are going to lower that standard to get whoever you can get in there to make money. Ms. Pendleton stated it is not the ideal thing to have an RV park right smack in the middle of a residential area. She stated the applicant has owned the property for two years, but he only now wants to clean up the property and invest in the neighborhood. Why now, why not 2 years ago if you really wanted to invest in the neighborhood he could have met with the neighbors before proposing the RV Park. She stated that she is all for growth that benefits the neighborhood, but this is just not the right place for an RV Park, and the neighborhood does not want it.

(-) Joan Cmiel Wright, 524 North 39th West Avenue, Tulsa, OK 74127, stated she lives next door to the proposed RV Park, and she appreciates the continued communication from the property owners and their willingness to meet with the neighboring residents regarding the proposed development. She understands and respects that it is private property, and the owner's right to improve and develop their land and is not opposed to thoughtful growth and progress in our community. However, after reviewing the updated report and proposed development information, she is concerned about the long-term impact this proposal could have on this established community and residential neighborhood. While the current request is technically rezoned for commercial shopping with an optional development plan, the report clearly states that he intends to put an RV park containing approximately fifty-five units on 3.8 acres. That level of density and intensity is simply not compatible with the surrounding neighborhood character. This proposal is not a traditional residential development. It's a high turnover, high activity commercial use that includes internal roads recreational amenities and concentrated occupancy directly adjacent to longstanding homes and families. She understands that the applicant would still need a Special Exception through the Board of Adjustment for the RV Park to be allowed but approving the rezoning and Comprehensive Plan Amendment on the agenda would establish the framework and momentum for this future use that is detrimental to the neighborhood and community. Her concerns remain centered around several major issues such as increased traffic and congestion along West Edison and neighboring streets. Ms. Wright spoke with John 3:16, which is across the street from the subject property and the nearby schools, and they are opposed to this application also. They are concerned with children walking to and from school. She has also spoke with local bike clubs that use that area for their biking, and they are opposed because that would increase the traffic and also could potentially cause injury to their bikers. Ms. Wright has concerns about wastewater and infrastructure capacity especially in an area where many of the surrounding homes rely on septic systems; Noise, lighting, and the activity associated with high density RV development and the impact on adjacent property values and neighborhood stability. She expressed concern on the lack of sustained buffering and setbacks between the commercial activity and residential homes. She stated there is no RV park in this area that is right next door to residential homes. Ms. Wright stated there is long-term property maintenance and management concerns given the documented history of code enforcement issues on the property. She acknowledged that the optional development plan now includes certain prohibitive, commercial and minimum screening requirements, but proposed standards still do not adequately protect the neighboring residential properties that it most directly impacts.

(=) Pat Jones, 4944 West 1st Street, Tulsa, OK 74127, stated he is not for or against the proposal but wants it done correctly. The road in front of the subject property is not wide enough for the RV's and there are no turning lanes. Bicyclists frequent this road, but bike lanes stop at 33rd West Ave.

(-) Anne Pollard James, 622 North 41st West Avenue, Tulsa, OK 74127, is concerned about his blanket rezoning. She asks what happens next, are there any conditions to be placed on the development that would allow for things like the length of the stay for RVs that are allowed to park in said RV park. She asked if there were requirements for the age of the RV. Ms. James stated if you change the zoning to CS, it changes forever and it could be changed or offered as MPD for a specific plan. She is concerned about any kind of background checks for the people coming into the community and length of stay. Also she questioned if 55 is a good number for that space. She is opposed to this in the way it's been put forth. She stated that the current owner stated that he has owned the property for 2 years but in the last two years, there has been no care and attention to that space, and she fears that is pretty indicative of what will happen down the road.

Mr. Hood asked the applicant how realistic his plan is because he noticed there is a watermark on the concept plan. He stated that he was not sure that 55 was a real number for this development and thought it may go down a bit.

Mr. Walker asked staff about the CS next to residential. He stated that he thought the neighbors made some compelling comments.

Staff stated everything that has been brought to our attention by the neighborhood has been extremely reasonable and pleasant. He stated when the applicant originally approached the Planning Office, the idea was for the RV park. He stated staff was not supportive of a zoning district that would allow an RV park by right and that is how they landed on the CS zoning as an option. This would subject them to further approvals before an RV park could ever be permitted at this location. So, he looked at it as a little bit of a compromise. The applicant would have to go through multiple hearings, as well as hearing specifically on their final RV park plan, whatever that might look like at a time whenever they're ready for that.

Mr. Bulmash stated the RV park is not what is presented today. Today is just the zoning. He stated it is up to the Board of Adjustment to make that decision and they can impose conditions.

Mr. Hood stated he was going to make a motion for a continuance to allow the neighbors and applicant more time to meet and try to work out an optional development plan.

Commission Action

Motion: To continue item 5 to June 3, 2026.

Motion by: Hood Second by: Bulmash

Vote: 5-2-0

Ayes: Bulmash, Hood, Krug, Shivel, Walker

Nays: Humphrey, Whitlock

Abstentions: none

Absent: Craddock, Cue, Fugate, Turner-Addison

Commissioner Krug left the meeting at 2:05 pm.

6. CZ-588 (County)

Location: 17096 South Yale Avenue

County Commission District: 3

Applicant: Ahmad Moradi

Action Requested: Rezoning from AG to RE

Staff Recommendation

The applicant is requesting to rezone the subject property from AG (Agricultural) to RE (Residential Estate). Concurrently, the applicant is pursuing a lot split to subdivide the property into four individual lots, each consisting of slightly more than one-half acre. Approval of the proposed lot split is contingent upon approval of the requested rezoning, as the lots would need to comply with the development standards of the RE zoning district.

The requested RE zoning appears to be compatible with the surrounding development pattern and generally consistent with the adopted Comprehensive Plan land use designations affecting the property, which include Rural Residential, Commercial, and Neighborhood Commercial. The RE district is intended to accommodate low-density residential development on larger lots and serves as an appropriate transitional zoning district between agricultural land and more intensive commercial activity in the surrounding area.

The subject property is located along E. 171st Street South and in proximity to existing commercial and institutional uses, including property currently zoned IL and OL immediately adjacent to the site. Additionally, residentially zoned property exists to the south and southeast of the request area. Given this context, the proposed RE zoning would provide an orderly land use transition and maintain compatibility with nearby residential development patterns while still preserving a low intensity residential character.

The request also appears consistent with the Rural Residential future land use designation, which supports low-density residential development in areas that maintain a more rural character. While portions of the surrounding area are designated Commercial and Neighborhood Commercial, the requested RE zoning provides a less intensive land use than those future classifications would otherwise support, reducing the likelihood of adverse impacts on surrounding properties.

Staff further finds that the proposed rezoning would not materially injure the surrounding area, provided development occurs in accordance with the Tulsa County Zoning Code and all applicable subdivisions, access, drainage, and engineering requirements.

Therefore, staff recommend approval of the request to rezone the subject property from AG to RE.

Comprehensive Plan Considerations

Land Use Plan

The subject property is designated as: **Commercial; Neighborhood Commercial**

Designation Description: **The Commercial** designation denotes areas that create retail and commercial destinations for City residents, as well as others throughout the region. This designation may also support offices and business parks. Development shall have direct access to major roads and transit.

The Neighborhood Commercial designation denotes areas that provide goods and services to meet the frequent shopping needs of residents. Development shall have access to major roads and provide opportunities for walking and biking from nearby residential areas.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	AG (Agricultural District)	Rural Residential; Commercial; Neighborhood Commercial	Predominantly undeveloped agricultural and rural residential properties consisting of larger tracts with scattered single-family residences.
East	OL (Office Light District) and IL (Industrial Light District)	Rural Residential; Commercial; Neighborhood Commercial	Office and light industrial/commercial development located along the E. 171st Street South corridor.
South	AG (Agricultural District) and RE (Residential Estate District)	Rural Residential; Neighborhood Commercial	Mixture of undeveloped agricultural land and low-density single-family residential development on larger lots within established residential subdivisions.
West	AG (Agricultural District)	Rural Residential; Commercial; Neighborhood Commercial	Primarily agricultural and rural residential properties consisting of larger undeveloped tracts and scattered residential uses.

Transportation

Major Street & Highway Plan: E. 171st St. S. is classified as Primary Arterial & S. Yale Ave. is classified as Secondary Arterial

Transit: None

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: None

Environmental Considerations

Flood Area: None

Parks & Open Space: None

Zoning History

Resolution 98254 dated September 15, 1980, established zoning for the subject property.

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Recommend approval of RE zoning, per staff's recommendation.

Motion by: Hood Second by: Whitlock

Vote: 6-0-0

Ayes: Bulmash, Hood, Humphrey, Shivel, Walker, Whitlock

Nays: none

Abstentions: none

Absent: Craddock, Cue, Fugate, Krug, Turner-Addison

Property Description

S/2 S/2 SE SE SE SEC 28 17 13 2.50ACS County of Tulsa, State of Oklahoma.

Items 7 and 8 were presented together.

7. CZ-589 (related to PUD-878) (County)

Location: Northwest corner of South Lewis Avenue and East 171st Street South

County Commission District: 3

Applicant: Mark B. Capron, Wallace Design Collective

Action Requested: Rezoning from AG to AG-R

Staff Recommendation

The applicant is requesting to rezone the subject property from AG (Agricultural) to AG-R (Agricultural Residential) with an accompanying Planned Unit Development (PUD-878) to allow for a gated residential subdivision with private streets.

Staff finds the request to be consistent with the Rural Future Land Use designation, which is intended to preserve the open, low-density character of the area while accommodating limited residential development compatible with surrounding agricultural and rural residential uses. The proposed AG-R zoning and related PUD maintain a low-intensity residential development pattern that is consistent with the character of the surrounding area.

The surrounding vicinity is characterized primarily by agricultural land, large-lot rural residential properties, and scattered single-family homes on acreage tracts. Existing AG and AG-R zoning classifications are prevalent throughout the area, while more suburban-style residential development zoned RS-3 exists generally south of E. 171st Street South. The proposed development would provide an appropriate transition between the larger agricultural tracts and the more concentrated residential development located to the south.

Staff further finds that the use of a PUD is appropriate for this request, as it allows development standards to be tailored specifically to the site while ensuring compatibility with the surrounding rural context. The proposed gated subdivision and private street design allow for coordinated site planning, controlled access, reduced through traffic, and flexibility in lot layout and internal circulation. The PUD process also provides the County with the ability to evaluate site-specific standards related to setbacks, buffering, lot configuration, and circulation patterns in greater detail than conventional zoning standards alone.

The proposed rezoning and related PUD do not appear to introduce land uses incompatible with the surrounding area. Rather, the request represents a continuation of the residential development pattern already occurring in the vicinity while maintaining a lower density rural character consistent with the Comprehensive Plan.

All future development of the site will remain subject to County Engineering review, drainage review, utility coordination, subdivision platting requirements, emergency access requirements, and all applicable permitting processes. Private streets and gated access will also require review and approval by the appropriate agencies during the platting and development stages.

Based on the proposed low-density residential character, consistency with the Rural Future Land Use designation, and the additional development controls provided through the PUD process, staff finds the request to be reasonable and compatible with the surrounding area.

Therefore, staff recommends approval of the request to rezone the subject property from AG to AG-R and approval of PUD-878 for a gated residential subdivision with private streets.

Comprehensive Plan Considerations

Land Use Plan

The subject property is designated as: Rural

Designation Description: The subject property is located within the Rural land use designation of the Tulsa County Comprehensive Plan, which is consistent with the City of Glenpool's Comprehensive Plan as adopted by reference. This designation consists of lands that are sparsely developed, with mainly agricultural and very low-density residential as the primary uses. This category provides its residents with the choice of relative seclusion within the countryside and away from a more developed setting. Glenpool has extensive rural lands within its city limits relative to cities that have this mostly beyond their jurisdiction, except in areas that have been annexed for eventual development, or to preserve rural character through the protections afforded by agricultural zoning. Floodplain areas may also retain their rural character over the long term given their unsuitability for any intensive land development.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	AG (Agricultural)	Rural	Vacant/Residential Single Family
East	AG (Agricultural)	Agricultural; Rural Residential	Residential Single Family
South	AG (Agricultural)	Rural	Residential Single Family
West	AG (Agricultural)	Rural	Vacant/Residential Single Family

Transportation

Major Street & Highway Plan: S. Lewis Ave. is classified as Secondary Arterial & E. 171st St. S. is classified as Primary Arterial

Transit: None

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: None

Environmental Considerations

Flood Area: None

Parks & Open Space: None

Zoning and Board of Adjustment History

Zoning was established through the provisions of the Board of County Commissioners of the County of Tulsa with Resolution (CMF# 20241854) September 30,2024.

AG-R for east phase was previously approved by Resolution (CMF 20252082 10.27.2025).

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Recommend approval of the AG-R zoning, per staff's recommendation.

Motion by: Humphrey Second by: Shivel

Vote: 6-0-0

Ayes: Bulmash, Hood, Humphrey, Shivel, Walker, Whitlock

Nays: none

Abstentions: none

Absent: Craddock, Cue, Fugate, Krug, Turner-Addison

Property Description

PART OF THE SOUTHEAST QUARTER (SE/4) OF SECTION THIRTY (30), TOWNSHIP SEVENTEEN (17) NORTH, RANGE THIRTEEN (13) EAST OF THE INDIAN BASE AND MERIDIAN TULSA COUNTY, STATE OF OKLAHOMA, MORE PARTICULARLY DESCRIBED AS FOLLOWS, TO-WIT:

COMMENCING (P.O.C.) AT THE NORTHEAST CORNER OF SAID SOUTHEAST QUARTER (SE/4); THENCE S 88°51'05" W ALONG THE NORTH LINE OF SAID SOUTHEAST QUARTER (SE/4) FOR A DISTANCE OF 1714.07 FEET TO THE POINT OF BEGINNING (P.O.B.); THENCE S01°04'40"E FOR A DISTANCE OF 570.05 FEET; THENCE N88°49'46"E FOR A DISTANCE OF 20.00 FEET; THENCE ON A CURVE TO THE RIGHT, HAVE A RADIUS OF 25.00 FEET, A CHORD BEARING OF S46°10'14"E, A CHORD LENGTH OF 35.36 FEET, AND ARC LENGTH OF 39.27 FEET AND AN ANGLE OF 90°00'00", THENCE S01°10'14"E FOR A DISTANCE OF 231.89 FEET; THENCE ON A CURVE TO THE LEFT HAVING A RADIUS OF 255.00 FEET, A CHORD BEARING OF S18°08'02"E, A CHORD DISTANCE OF 148.80 FEET, AN ARC LENGTH OF 150.99 FEET AND AN ANGLE OF 33°55'36"; THENCE S35°05'50"E FOR A DISTANCE OF 450.00 FEET; THENCE S54°54'10"W FOR A DISTANCE OF 150.00 FEET; THENCE S35°05'50"E FOR A DISTANCE OF 670.82 FEET TO A POINT ON THE NORTH LINE OF THE S2/ S/2 SE/4 OF SAID SECTION 30; THENCE S88°50'02"W FOR A DISTANCE OF 1267.68 FEET; THENCE S01°09'16"E FOR A DISTANCE OF 661.05 TO A POINT ON THE SOUTH LINE OF SAID SOUTHEAST QUARTER (SE/4); THENCE S88°49'40"W ALONG SAID SOUTH LINE FOR A DISTANCE OF 253.10 FEET TO A POINT ON THE WEST LINE OF SAID SOUTHEAST QUARTER (SE/4); THENCE N01°09'23"W ALONG SAID WEST LINE FOR A DISTANCE OF 2644.30 FEET TO A POINT ON THE NORTH LINE OF SAID SOUTHEAST QUARTER (SE/4); THENCE N88°51'05"E ALONG SAID NORTH LINE FOR A DISTANCE OF 931.72 FEET TO THE POINT OF BEGINNING (P.O.B.). SAID TRACT CONTAINING 54.20 ACRES (2,360,755.88 SQUARE FEET), MORE OR LESS.

COMBINED WITH THE FOLLOWING TRACT OF LAND MORE PARTICULARLY DESCRIBED AS FOLLOWS, TO-WIT:

County of Tulsa, State of Oklahoma

8. PUD-878 (related to CZ-589) (County)

Location: Northwest corner of South Lewis Avenue and East 171st Street South

County Commission District: 3

Applicant: Mark B. Capron, Wallace Design Collective

Action Requested: Approval of new PUD to allow Residential Gated Subdivision with Private Streets

Staff Recommendation**SECTION I****DEVELOPMENT CONCEPT**

The applicant is requesting approval of a Planned Unit Development (PUD) to permit a coordinated single-family residential development on approximately 97.61 acres located at the northwest corner of South Lewis Avenue and East 171st Street South.

The proposed development, to be known as *Adeleine Hills*, is designed as a low-density, rural residential subdivision consisting of estate-sized lots, each exceeding one acre in size. The development is planned to occur in two phases and is intended to maintain a development pattern consistent with the surrounding rural residential character.

The PUD establishes AG-R (Agricultural Residential) as the underlying zoning district while allowing for development standards that accommodate a gated subdivision with private streets, which would not otherwise be permitted under conventional zoning. The development will include internal private streets constructed to applicable County standards and maintained by a homeowners' association.

Primary access to the site is proposed via two gated entry points, one from East 171st Street South and one from South Lewis Avenue, providing circulation through an internal street network designed to serve individual residential lots.

The overall layout of the subdivision is responsive to existing site conditions, including topography and natural features. As shown on the conceptual site plan, development is organized around a central open space area incorporating an existing pond, which will be preserved and enhanced to function as both an amenity and a stormwater detention facility.

The project emphasizes preservation of the rural character through:

- Large lot sizes
- Limited internal infrastructure
- Use of bar ditches for stormwater conveyance
- Minimal urban improvements such as sidewalks

Utilities will be extended to serve the development, including water service provided by Creek County Rural Water District No. 2.

The subject property is designated Rural under the Tulsa County Comprehensive Plan (*Future Land Use Map*), and the proposed development pattern, characterized by low density and estate-style residential lots, is consistent with that designation.

Surrounding properties consist primarily of agricultural and low-density residential uses, with a platted subdivision located south of East 171st Street South, further reinforcing the compatibility of the proposed development within the existing development pattern.

Overall, the PUD provides a development framework that allows for a coordinated residential subdivision while maintaining consistency with the Comprehensive Plan and preserving the rural character of the area.

Development pursuant to this PUD shall comply with all requirements of the Tulsa County Fire Marshal and County Engineer.

SECTION 2

PUD-878 DEVELOPMENT STANDARDS

PUD-878 will establish standards for a single-family detached housing development with private streets and shall be regulated by the Tulsa County Zoning Code, applicable supplemental regulations, and the current AG-R zoning dimensional standards as further outlined below.

Allowed Residential Building Types

Detached house

Permitted use group and subcategory:

Residential

Household Living (in permitted residential building type)

Single Household

Two households in a single lot

Office

Business or professional office (only in type I and type II home occupation)

Agricultural:

Community Garden

Lot and Building Regulations:

- | | |
|---|--|
| 1. Minimum Lot Area | 1 acre |
| 2. Minimum Lot Area per Dwelling Unit | 1 acre |
| 3. Minimum lot width | 100 feet |
| 4. Minimum lot frontage on public or private street | 30 feet |
| 5. Minimum Building Setbacks | |
| Street setback | 35 feet from private street reserve area boundary. |
| Interior Side | 15 feet |
| Arterial Street | 35 feet (From planned right of way on South Lewis Ave and East 171 st Street South) |
| Rear setback: | 40 feet |
| 6. Minimum separation between houses on same lot | 30 feet |
| 7. Maximum building height: | 35 feet |
| 8. Accessory buildings: | |
| a. max height: | 25 feet |
| b. minimum street setback: | behind front façade of principal building |
| c. minimum side and rear setbacks: | same as principal building |
| 9. Minimum Parking: | 2 off street parking spaces per lot |

Accessory Uses and Structures

General provisions	Conform with Section 8.010 of the Tulsa County Zoning Code
Accessory Antennas	Prohibited
Accessory Buildings	
Maximum building coverage of all accessory buildings	25% of lot area
Maximum height	25 feet
Minimum Side and rear setbacks	Same as principal building

Accessory Dwelling Unit

Conform with all standards outlined in section 8.040 of Tulsa County Zoning Code

Home Occupations: Type 1 and Type 2

Conform with all standards outlined In section 8.120 of Tulsa County Zoning Code

Keeping of Animals:

Conform with all standards as defined in section 8.130 of the Tulsa County Zoning Code as related to the AG-R district of the Tulsa County Zoning Code.

Signs:

Neighborhoods or subdivisions are allowed a single freestanding sign at each street entrance to the neighborhood or subdivision.

The freestanding signs allowed by this section may not exceed 32 square feet in area or 0.20 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed 150 square feet in area. The maximum sign area calculation must be based on the street frontage to which the sign is oriented. Maximum height may not exceed 20 feet.

Wall Signs:

Nonresidential uses are allowed a maximum of one wall sign per public building entrance on each lot. No individual wall sign may exceed 32 square feet in area and may not be illuminated

Dynamic displays are prohibited.

Off premises outdoor advertising signs are prohibited.

Off street parking:

Parking must be surfaced with an all-weather surface and conform with all supplemental regulations as defined in section 10.050 and 10.060 of the Tulsa County Zoning Code.

Access and Circulation:

All streets within PUD-878 will be privately owned and maintained by a property owners association.

Entrance to the subdivision will be limited from South Lewis Avenue and East 171st Street South as shown. Gate will be constructed to limit public access to subdivision and provide additional security for the lot owners. All such gates will be constructed according to the requirements of the Tulsa County Subdivision Regulations, County Engineering Standards and Fire Marshal.

Access to individual lots abutting South Lewis Avenue and East 171st street south will be prohibited. and Limits of No Access (LNA) will be imposed by the future subdivision plat street intersection as illustrated on the conceptual plan. The precise location and dimensional standards of the intersection shall be approved by the Fire Marshal and County Engineer.

Perimeter Screening Walls and Fences:

Fencing along South Lewis Avenue and East 171st Street shall consist of wood, masonry or wrought iron material or a combination thereof. All such fencing and gates shall be contained with a Fence Easement or Reserve by the plat of "Adeline Hills" and maintained by the property owner's association.

SECTION 3

Staff Recommendation

PUD-878 as outlined in Section 2 above is consistent with the policy and intent of the rural land designation in the comprehensive plan and,

The Planned unit Development conforms with the provisions of the Tulsa County Zoning Code and,

Development standards provide an opportunity for innovative land development that establishes intensity and compatibility with adjoining and proximate properties and,

Details outlined in Section 2 offer opportunities for greater flexibility and creativity within the development to best utilize the features of the site and

Recognizes opportunities for meaningful open space available for use by all the lot owners in the PUD therefore,

Staff recommends approval for PUD-878 as outlined in Section 2 above and **only if CZ-589 is approved for AG-R zoning.**

Comprehensive Plan Considerations

Land Use Plan

The subject property is designated as: Rural

The subject property is located within the Rural land use designation of the Tulsa County Comprehensive Plan, which is consistent with the City of Glenpool's Comprehensive Plan as adopted by reference. This designation consists of lands that are sparsely developed, with mainly agricultural and very low-density residential as the primary uses. This category provides its residents with the choice of relative seclusion within the countryside and away from a more developed setting. Glenpool has extensive rural lands within its city limits relative to cities that have this mostly beyond their jurisdiction, except in areas that have been annexed for eventual development, or to preserve rural character through the protections afforded by agricultural zoning. Floodplain areas may also retain their rural character over the long term given their unsuitability for any intensive land development.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	AG (Agricultural)	Rural	Vacant/Residential Single Family
East	AG (Agricultural)	Agricultural; Rural Residential	Residential Single Family
South	AG (Agricultural)	Rural	Residential Single Family
West	AG (Agricultural)	Rural	Vacant/Residential Single Family

Environmental Considerations

Flood Area: None

Parks & Open Space: None

Zoning and Board of Adjustment History

Zoning was established through the provisions of the Board of County Commissioners of the County of Tulsa with Resolution (CMF# 20241854) September 30, 2024.

AG-R for east phase was previously approved by Resolution (CMF 20252082 10.27.2025).

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Recommend approval of PUD-878, per staff's recommendation.

Motion by: Humphrey Second by: Shivel

Vote: 6-0-0

Ayes: Bulmash, Hood, Humphrey, Shivel, Walker, Whitlock

Nays: none

Abstentions: none

Absent: Craddock, Cue, Fugate, Krug, Turner-Addison

Property Description

PART OF THE SOUTHEAST QUARTER (SE/4) OF SECTION THIRTY (30), TOWNSHIP SEVENTEEN (17) NORTH, RANGE THIRTEEN (13) EAST OF THE INDIAN BASE AND MERIDIAN TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE RECORDED PLAT THEREOF, MORE PARTICULARLY DESCRIBED AS FOLLOWS, TO-WIT:

COMMENCING (P.O.C.) AT THE NORTHEAST CORNER OF SAID SOUTHEAST QUARTER (SE/4); THENCE S 88°51'05" W ALONG THE NORTH LINE OF SAID SOUTHEAST QUARTER (SE/4) FOR A DISTANCE OF 745.32 FEET TO THE POINT OF BEGINNING (P.O.B.); THENCE S01°10'12"E FOR A DISTANCE OF 836.39 FEET; THENCE N88°50'21"E FOR A DISTANCE OF 695.32 FEET TO A POINT 50.00 FEET WEST OF THE EAST LINE OF SAID SOUTHEAST QUARTER (SE/4); THENCE S01°10'12"E AND PARALLEL TO SAID EAST LINE FOR A DISTANCE OF 485.33 FEET; THENCE S88°50'11"W FOR A DISTANCE OF 728.42 FEET; THENCE S01°10'12"E FOR A DISTANCE OF 660.88 FEET; THENCE S88°50'02"W FOR A DISTANCE OF 1614.72 FEET; THENCE S01°09'16"E

FOR A DISTANCE OF 661.05 FEET TO A POINT ON THE SOUTH LINE OF SAID SECTION; THENCE S88°49'40"W ALONG SAID SOUTH LINE FOR A DISTANCE OF 253.10 FEET TO A POINT ON THE WEST LINE OF SAID SOUTHEAST QUARTER (SE/4); THENCE N01°09'23"W ALONG SAID WEST LINE FOR A DISTANCE OF 2644.30 FEET TO A POINT ON THE NORTH LINE ALONG SAID SOUTHEAST QUARTER (SE/4); THENCE N88°51'05"E ALONG SAID SOUTHEAST QUARTER (SE/4) FOR A DISTANCE OF 1900.47 FEET TO THE POINT OF BEGINNING (P.O.B.). SAID TRACT CONTAINING 97.61 ACRES (4,251,895 SQUARE FEET), MORE OR LESS.

BASIS OF BEARINGS

BASIS OF BEARINGS FOR THIS EXHIBIT IS THE OKLAHOMA STATE PLANE COORDINATE SYSTEM (NAD83 OKLAHOMA NORTH ZONE 3501).

DRAFT

Items 9 and 10 were presented together.

9. CZ-590 (related to PUD-879) (County)

Location: 3939 East 161st Street South

County Commission District: 3

Applicant: Bell Land Use LLC, Robert Bell

Action Requested: Rezoning from AG to RM-0

Staff Recommendation

The subject property is currently developed with residential uses that do not fully conform to the standards of the underlying AG zoning district. The purpose of the requested rezoning and accompanying PUD is to establish a zoning framework that more accurately reflects the existing development pattern on the site while allowing for future redevelopment, site improvements, and incremental compliance with current zoning and development standards.

The proposed RM-0 zoning district is intended to accommodate medium-density residential development, including multifamily residential uses, and is more consistent with the existing character of the property. The accompanying PUD establishes site-specific development standards intended to address existing nonconformities while providing standards for future redevelopment, parking improvements, setbacks, circulation, and overall site functionality.

The surrounding area contains a mixture of agricultural land, low-density residential development, and emerging suburban residential patterns. Nearby properties are zoned AG, RS-2, RS-2.5, RS-3, and CS, reflecting the transitional character of the area along the E. 161st Street South and S. Yale Avenue corridors. Staff finds that the requested RM-0 zoning and accompanying PUD represent a reasonable transition within the area given the residential character already established on the subject property.

Staff further find that the use of a PUD is appropriate because it allows development standards to be tailored specifically to the site and existing conditions. The PUD provides a mechanism to address building placement, setbacks, parking requirements, circulation improvements, and redevelopment standards while ensuring future improvements occur in a coordinated and compatible manner. The request also provides a pathway for the property to improve compliance over time while allowing the continued residential use of the site.

The proposed rezoning promotes improved long-term land use administration by transitioning the property from an agricultural zoning district that does not accurately reflect the existing use of the property to a zoning classification intended for multifamily residential development. Future redevelopment of the site will remain subject to platting requirements, drainage review, utility review, access management standards, County Engineering review, and all applicable permitting processes.

Based on the existing residential character of the site, the surrounding development pattern, and the additional development controls provided through the PUD process, staff finds the request to be reasonable and compatible with the surrounding area.

Therefore, staff recommends approval of the request to rezone the subject property from AG to RM-0 with an accompanying PUD to support the redevelopment and continued operation of the existing non-conforming residential uses.

Comprehensive Plan Considerations

Land Use Plan

The subject property is designated as: Medium Density Residential

Designation Description: The Medium Density Residential designation denotes areas within Bixby where there is a sense of neighborhood cohesion. Medium Density Residential mostly consists of attached and detached single-family homes but may also include other integrated land uses that support the neighborhood, such as shops, religious institutions, small offices, and educational institutions that reflect the neighborhood's character.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	RS-2.5 (Single-Family Residential) Bixby Jurisdiction; & RS-3 (Single-Family Residential)	N/A Bixby Corporate Limits	Predominantly undeveloped land planned for low-density residential development, with nearby established single-family residential subdivisions located further northwest of the subject property.
East	RS-2.5 (Single-Family Residential) Bixby Jurisdiction; & RS-3 (Single-Family Residential) and CS (Commercial Shopping District)	N/A Bixby Corporate Limits	Mixture of undeveloped residentially zoned land, low-density residential uses, and limited commercial development located near the S. Yale Avenue corridor.
South	AG (Agricultural)	Low Density Residential	Primarily agricultural and rural residential properties consisting of larger undeveloped tracts and scattered single-family residences along E. 161st Street South.
West	RS-2.5 (Single-Family Residential) Bixby AG (Agricultural)	Medium Density Residential	Mixture of undeveloped residentially zoned land and agricultural properties with rural residential development patterns.

Transportation

Major Street & Highway Plan: E. 161st St. S. is classified as Secondary Arterial

Transit: None

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: None

Environmental Considerations

Flood Area: None

Parks & Open Space: None

Zoning History

Resolution 98254, dated September 15 1980, established zoning for the subject property.

TMAPC Comments

None

Applicant Comments

Mr. Robert Bell, 101 E. Aquarium Place, Jenks, Oklahoma 74037, stated that he had worked with staff extensively to maintain and improve what is there and does not want to expand it. The County Inspections Department wants to rezone it to RM-0 and move it forward with the PUD because of properties that are too close to the property lines. There is a water course that goes down the middle towards a pond that is located on the back half of the property. Water requirements to improve the storm water drainage will be handled in the future when they seek permits for parking areas and development for the existing structures. At the same time, there is a limitation that they could not expand unless the plat took it further. They cannot expand the number of units unless they make an amendment to the PUD and bring it back to TMAPC.

John Roach, 5521 East 181st South, Bixby, Oklahoma 74008, stated that he was the owner of this property.. There are a couple of units that are vacant because his group was remodeling. The remodel project was started last year, and they were replacing siding, windows, and doors. The County Inspectors told the applicant that he had to have a permit, so Mr. Roach applied for a permit for the second building and the Inspectors stated that they wanted to talk to him about the zoning issue. The County Inspectors asked him to get the rezoning done before he started to remodel any other units.

Speakers

(-) Nicole Watts, 16208 South Harvard, Bixby, Oklahoma 74008, stated that she was there as private citizen and not as a representative of Wallace Design. She is not opposed to development and growth. These buildings have been there for a long time, and she commends the builders for upgrading these buildings. However, the application that was put in for the rezoning and the PUD for the ten acres was overreaching. The Comprehensive Plan shows this is for rural residential and single-family dwellings. There is mainly RS-3 and RS-5 in the surrounding area. She stated there was a lot lacking in the PUD including a site plan. She would like the PUD to be reduced to only the area around the units and leave the rest of the property AG.

Mr. Bell stated that he agreed with some of what Ms. Watts said but they are not trying to expand beyond the existing twelve units. The best interest for everyone involved is to approve the rezoning and the PUD with the limitation that no further development can be done until all the criteria have been submitted and approved.

Mr. Walker asked if a continuance to meet with Ms. Watts and any other neighbors would be helpful.

Mr. Bell stated that Ms. Watts lives approximately a mile away and there are not any neighbors in a 300-foot radius. Putting the process off for another month would not be in the best interest of the parties.

Mr. Whitlock asked how this had gotten on the agenda without a public meeting.

Staff stated that a public meeting is not a requirement, but staff encourages their applicants to do so. Our office sends out notices to the surrounding neighbors within 300 feet and to the City of Bixby.

Mr. Humphrey stated that he thought there were things that could have been discussed before bringing them to the Planning Commission. He felt like he and his fellow members did not have a footing to move forward with this at this time because of gaps in the PUD.

Mr. Hood stated that they could limit it to the existing twelve units and the applicant would need to come back to amend the PUD if they decide to expand. If it is just rezoned for the four structures and keep the rest as AG would that be workable?

Staff stated it is possible to have multiple zones on one lot.

Mr. Bell stated the County told the owner to apply for the RM-0 zoning because it is the proper zoning for the existing twelve units. He wants to improve what is there. The County and the County Commissioners have given him directions on how to proceed, and he is following their directions.

Mr. Roach stated that the units are on two acres and the remaining acres have issues with setbacks, power lines, and water features. There is not the potential for expansion that had been presented by the protestant.

According to the zoning Code a tie vote must be forwarded to the Board of County Commissioners and placed on their agenda.

Commission Action

Motion: Recommend approval of RM-0 zoning, per staff's recommendation.

Motion by: Whitlock Second by: Walker

Vote: 3-3-0

Ayes: Shivel, Walker, Whitlock

Nays: Bulmash, Hood, Humphrey

Abstentions: none

Absent: Craddock, Cue, Fugate, Krug, Turner-Addison

Property Description

THE EAST HALF OF THE EAST HALF OF THE SOUTHEAST QUARTER OF THE SOUTHWEST QUARTER (E/2 E/2 SE/4 SW/4) OF SECTION TWENTY ONE (21), TOWNSHIP SEVENTEEN (17) NORTH, RANGE THIRTEEN (13) EAST OF THE INDIAN BASE AND MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF.

10. PUD-879 (related to CZ-590) (County)

Location: 3939 East 161st Street South

County Commission District: 3

Applicant: Bell Land Use LLC, Robert Bell

Action Requested: Approval of new PUD to support redevelopment of non-conforming uses in AG district

Staff Recommendation**SECTION I****DEVELOPMENT CONCEPT**

The subject property is designated as Medium Density Residential by the Tulsa County/City of Bixby Comprehensive Plan. This designation is intended to support a mixture of attached and detached residential development while maintaining compatibility with surrounding residential uses and reinforcing the overall residential character of the area.

The property is currently developed with four existing multifamily residential structures consisting of one duplex, two triplexes, and one four-plex. The purpose of the requested zoning and accompanying Planned Unit Development (PUD) is to bring the existing development into greater compliance with current zoning, site development, and parking standards established by the Tulsa County Zoning Code.

The proposed PUD establishes site-specific development standards to address existing conditions on the property. This includes a reduced side yard setback along the eastern property boundary to accommodate the placement of existing structures that currently encroach into the required setback area. Any future development or redevelopment outside the approved PUD provisions will be required to comply with applicable zoning code standards unless otherwise modified through future approvals.

A primary component of the request is the improvement and expansion of off-street parking areas to bring the site into compliance with current parking requirements. Additional parking areas are proposed as shown on the conceptual site plan and will be required to meet dust-free surface standards and other applicable zoning code requirements.

Staff further notes that the property owner has initiated ongoing remodeling, maintenance, and rehabilitation efforts associated with the existing residential structures. The proposed PUD framework will allow site improvements to occur incrementally as redevelopment and permitting activities continue, including upgrades related to parking, circulation, and overall site compliance.

The PUD also requires the property to be platted prior to the establishment of additional residential units or future phases of development. While future resident amenities or park features may be considered, such improvements are not anticipated to significantly increase impervious surface coverage or alter the overall intensity of development on the site.

The subject property consists of approximately 10 acres and is generally surrounded by residential and agricultural uses. Properties to the north and east have developed with residential uses and approved Planned Unit Developments, while agricultural zoning remains in the vicinity. The requested zoning and PUD are intended to ensure the property develops in a manner that is more consistent with the established and evolving development pattern of the surrounding area.

The site contains topographic and drainage characteristics that will require consideration during future development activity. Two ponds are located north of the developed area and are connected by an existing drainage course or creek system that traverses portions of the property. These drainage features function as part

of the historic stormwater system affecting the site. Any future site improvements, including parking expansions or additional development, will be required to adequately address stormwater management and drainage impacts in accordance with County Engineering requirements and applicable subdivision regulations.

The property currently utilizes existing septic systems and is served by Rural Water District infrastructure. Additionally, portions of the property are impacted by overhead electric lines and utility easements located near the western portion of the site. Future site planning and development activity will be required to account for these existing utility constraints. Certain areas of the property currently intended for parking improvements may also serve future access and circulation functions associated with additional phases of development.

Development pursuant to this PUD shall comply with all requirements of the Tulsa County Fire Marshal and County Engineer.

SECTION 2

PUD-879 DEVELOPMENT STANDARDS

PUD-879 will establish standards for a mix of multifamily, single-family detached housing and possible office uses. Future development opportunities will be enhanced with private streets and shall be regulated by the relevant standards of the Tulsa County Subdivision regulations, Tulsa County Zoning Code, applicable supplemental regulations included RM-O zoning standards as further outlined below. Building types and uses are prohibited except as outlined below:

Allowed Residential Building Types

- Detached house
- Manufactured housing unit, multi-section
- Townhouse
- Duplex
- Multi-unit residential building

Permitted use group and subcategory:

- Residential
 - Household Living (in permitted residential building type)
 - Single Household
 - Two households in a single lot
 - Three or more households on single lot
- Group Living
 - Assisted Living
 - Elderly / retirement center
 - Life Care retirement center
- Public, Civic and Institutional
 - Religious Assembly
 - School
 - Utilities and Public Service Facility, Minor

- Lodging:
 - Short Term Rental

- Commercial:
 - Lodging

Short-term rental
Office
Business or professional office (only in type I and type II home occupation)

Agricultural:
Community Garden

Lot and Building Regulations:

- | | |
|---|--|
| 1. Minimum Lot Area | 1 acre |
| 2. Minimum Lot Area per Dwelling Unit | 1 acre |
| 3. Minimum lot width | 100 feet |
| 4. Minimum lot frontage on public or private street | 30 feet |
| 5. Minimum Building Setbacks | |
| Street setback | 35 feet from private street reserve area boundary. |
| Interior Side | All new buildings must be a minimum of 15 feet (The 200 feet of the east boundary of the subject tract may be 5 feet). |
| Arterial Street | 35 feet (From planned right of way on East (East 161 st Street South) |
| Rear setback: | 40 feet |
| 6. Minimum separation between houses on same lot | 30 feet |
| 7. Maximum building height: | 35 feet |
| 8. Accessory buildings: | |
| a. max height: | 25 feet |
| b. minimum street setback: | behind front façade of principal building |
| c. minimum side and rear setbacks: | same as principal building |
| 9. Minimum Parking: | 1 off street parking spaces for each dwelling unit. |

Accessory Uses and Structures

General provisions	Conform with Section 8.010 of the Tulsa County Zoning Code
Accessory Antennas	Prohibited
Accessory Buildings	
Maximum building coverage of all accessory buildings	25% of lot area
Maximum height	5 feet
Minimum Side and rear setbacks	Same as principal building

Accessory Dwelling Unit

Conform with all standards outlined in section 8.040 of Tulsa County Zoning Code

Home Occupations: Type 1 and Type 2

Conform with all standards outlined in section 8.120 of Tulsa County Zoning Code

Signs:

Neighborhoods or subdivisions are allowed a single freestanding sign at each street entrance to the neighborhood or subdivision.

The freestanding signs allowed by this section may not exceed 32 square feet in area or 0.20 square feet of sign area per linear foot of street frontage, whichever is greater, but in no case may the sign exceed 150 square feet in area. The maximum sign area calculation must be based on the street frontage to which the sign is oriented. Maximum height may not exceed 20 feet.

Wall Signs:

Nonresidential uses are allowed a maximum of one wall sign per public building entrance on each lot. No individual wall sign may exceed 32 square feet in area and may not be illuminated

Dynamic displays are prohibited.

Off premises outdoor advertising signs are prohibited.

Off street parking:

Parking must be surfaced with an all-weather surface and conform with all supplemental regulations as defined in section 10.050 and 10.060 of the Tulsa County Zoning Code.

Access and Circulation:

All streets within PUD-879 will be privately owned and maintained by a property owners association.

Entrance to the subdivision will be limited to East 161st Street South as shown

Access to individual lots from East 161st Street South will be prohibited. Vehicular access to the subject tract shall be limited to a maximum of two access points, as depicted on the conceptual plan, with Limits of No Access (LNA) established through the future subdivision plat to control driveway and street access along the surrounding roadway frontage. The precise location and dimensional standards of the intersection shall be approved by the Fire Marshal and County Engineer.

SECTION 3

Staff Recommendation

PUD-879 as outlined in Section 2 above is consistent with the policy and intent of the rural residential land designation in the comprehensive plan and, The Planned unit Development conforms with the provisions of the Tulsa County Zoning Code and, Development standards provide an opportunity for innovative land development that establishes intensity and compatibility with adjoining and proximate properties and, Details outlined in Section 2 offer opportunities for greater flexibility and creativity within the development to best utilize the features of the site and Recognizes opportunities for meaningful open space available for use by all the lot owners in the PUD therefore, Staff recommends approval for PUD-879 as outlined in Section 2 above and **only if CZ-590 is approved for RM-0 zoning.**

Comprehensive Plan Considerations

Land Use Plan

The subject property is designated as: Medium Density Residential

The Medium Density Residential designation denotes areas within Bixby where there is a sense of neighborhood cohesion. Medium Density Residential mostly consists of attached and detached single-family homes but may also

include other integrated land uses that support the neighborhood, such as shops, religious institutions, small offices, and educational institutions that reflect the neighborhood's character.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	RS-2.5 (Single-Family Residential Bixby Jurisdiction); & RS-3 (Single-Family Residential)	N/A Bixby Corporate Limits	Predominantly undeveloped land planned for low-density residential development, with nearby established single-family residential subdivisions located further northwest of the subject property.
East	RS-2.5 (Single-Family Residential Bixby Jurisdiction) & RS-3 (Single-Family Residential) and CS (Commercial Shopping District)	N/A Bixby Corporate Limits	Mixture of undeveloped residential zoned land, low-density residential uses, and limited commercial development located near the S. Yale Avenue corridor.
South	AG (Agricultural)	Low Density Residential	Primarily agricultural and rural residential properties consisting of larger undeveloped tracts and scattered single-family residences along E. 161st Street South.
West	RS-2.5 (Single-Family Residential Bixby Jurisdiction); & AG (Agricultural)	Medium Density Residential	Mixture of undeveloped residential zone land and agricultural properties with rural residential development patterns.

Environmental Considerations

Flood Area: None

Parks & Open Space: None

Zoning and Board of Adjustment History

Zoning was established through the provisions of the Board of County Commissioners of the County of Tulsa with Resolution (CMF# 20241854) September 30,2024.

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Recommend approval of PUD-879, per staff's recommendation.

Motion by: Whitlock Second by: Walker

Vote: 3-3-0

Ayes: Shivel, Walker, Whitlock

Nays: Bulmash, Hood, Humphrey

Abstentions: none

Absent: Craddock, Cue, Fugate, Krug, Turner-Addison

Property Description

THE EAST HALF OF THE EAST HALF OF THE SOUTHEAST QUARTER OF THE SOUTHWEST QUARTER (E/2 E/2 SE/4 SW/4) OF SECTION TWENTY ONE (21), TOWNSHIP SEVENTEEN (17) NORTH, RANGE THIRTEEN (13) EAST OF THE INDIAN BASE AND MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF.

11. CZ-591 (County)

Location: 15843 North 113th East Avenue

County Commission District: 1

Applicant: Dane Searle

Action Requested: Rezoning from AG to RMH

Staff Recommendation

The applicant is requesting to rezone the subject property from AG (Agricultural) to RMH (Residential Mobile Home Park) to allow for a Residential Mobile Home Park.

The subject property is currently operating as an existing mobile home park; however, the AG zoning designation does not appropriately reflect the current use of the property. The purpose of the rezoning request is to bring the site into compliance with the Tulsa County Zoning Code and establish a zoning classification that more accurately aligns with the long-term use and operational characteristics of the property.

The subject property carries a Future Land Use designation of Residential. Staff finds that the proposed RMH zoning district is generally consistent with this designation, as the request supports an existing residential use rather than introducing a new incompatible or non-residential land use into the area.

The surrounding area is characterized primarily by agricultural and low-density residential development patterns. While mobile home parks can create compatibility concerns in some situations, staff notes that the use has historically operated on the property and the request would formalize the existing development pattern already occurring on-site rather than significantly altering the character of the surrounding area.

Staff further notes that portions of the property and surrounding area appear to be impacted by FEMA floodplain designations, including Zone AE areas. Any future redevelopment, infrastructure improvements, replacement of units, or site modifications will remain subject to applicable floodplain regulations, drainage requirements, County Engineering review, and permitting requirements.

Rezoning the property to RMH would provide a zoning framework specifically intended for mobile home park developments, including standards related to setbacks, buffering, circulation, utility placement, density, and operational requirements. Staff finds that bringing the property into zoning compliance through the RMH district promotes improved long-term land use administration and regulatory consistency for the site.

Based on the existing use of the property and consistency with the Residential Future Land Use designation, staff finds the request to be reasonable and appropriate.

Therefore, staff recommend approval of the request to rezone the subject property from AG to RMH.

Relevant Case History

The subject property has historically operated as a mobile home park despite maintaining an underlying AG (Agricultural) zoning designation since approximately 1980. While the use existed prior to current zoning standards applicable to mobile home park developments, questions later arose regarding the site's continued status as a lawful nonconforming use under the Tulsa County Zoning Code.

A prior case was brought before the County Board of Adjustment involving an appeal related to the interpretation of the property's nonconforming use status. The issue centered on whether the placement of additional mobile homes within the park constituted an expansion or enlargement of a nonconforming use. Under the Tulsa County Zoning Code, expansions of nonconforming uses are generally prohibited.

During the Board proceedings, staff and the permitting office determined that the proposed addition of mobile homes represented an expansion of the existing nonconforming use rather than the continuation of the existing nonconforming use. The Board ultimately upheld that interpretation based on the applicable code language and legal precedent supporting the conclusion that the proposed activity exceeded the limitations permitted for a lawful nonconforming use.

As a result, the current rezoning request from AG to RMH is intended to establish a zoning classification that appropriately recognizes and accommodates the existing mobile home park use while bringing the property into greater conformity with the Tulsa County Zoning Code moving forward

Comprehensive Plan Considerations

Land Use Plan

The subject property is designated as: Residential

Designation Description: Residential land use includes single-family homes, duplexes, townhouses, apartment units, and manufactured homes.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	AG (Agricultural)	Residential	Predominantly agricultural and rural residential properties consisting of larger undeveloped tracts, pastureland, wooded areas, and scattered single-family residences.
East	AG (Agricultural)	Residential	Undeveloped agricultural land and floodplain areas associated with the nearby creek corridor, with limited rural residential development in the vicinity.
South	RE (Residential Estate), IM (Industrial Moderate), and AG (Agricultural)	Residential	Mixture of low-density residential development, undeveloped land, and industrial-zoned property located generally along the E. 156th Street North corridor.

West	AG (Agricultural)	Residential	Primarily agricultural and rural residential properties consisting of large tracts of undeveloped land with scattered residential uses.
------	-------------------	-------------	---

Transportation

Major Street & Highway Plan: N. 113th East Ave. is classified as Secondary Arterial

Transit: None

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: None

Environmental Considerations

Flood Area: X (0.2 PCT ANNUAL CHANCE FLOOD HAZARD), AE (FLOODWAY), AE

Parks & Open Space: None

Zoning History

Resolution 98254, dated September 15, 1980, established zoning for the subject property.

TMAPC Comments

Mr. Hood asked if this was affected by the FEMA flood plain do not get usher in like a grandfather clause.

Staff stated that they do not. They still must go through the requirements.

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Recommend approval of RMH zoning, per staff's recommendation.

Motion by: Hood Second by: Humphrey

Vote: 6-0-0

Ayes: Bulmash, Hood, Humphrey, Shivel, Walker, Whitlock

Nays: none

Abstentions: none

Absent: Craddock, Cue, Fugate, Krug, Turner-Addison

Property Description

BEG 1209.49N SWC SW TH N1430.60 N86 E740.26 S86 S592.69 E579.01 S801.11 SWLY800.97 NE128.13 NE225.02
NLY139.10 W122.32 SW291.73 SWLY272.17 S120.50 SWLY155 POB SEC 17 22 14 33.876 ACS County of Tulsa,
State of Oklahoma.

DRAFT

Public Hearing – Comprehensive Plan Amendments

Review and possible adoption, adoption with modifications, denial, or deferral of the following:

Items 5 and 12 were continued to June 3, 2026

12. **CPA-131 (Related to Z-7860)** (Continued from May 6, 2026)

Location: East of the southeast corner of West Edison Street and North 41st West Avenue

City Council District: 4

Applicant: Darnell Blackmon

Action Requested: Change Land Use designation from Neighborhood to Multiple Use

Staff Recommendation

The applicant is proposing a comprehensive plan amendment for ± 3.81 acres to be changed from Neighborhood to Multiple Use.

As part of the application, applicants are asked the following questions: how conditions on the subject site, adjacent properties, and the immediate area have changed; how changes have affected the subject site to warrant the proposed amendment; and how the proposed change will further other City of Tulsa goals, strategies, and actions as outlined in the Comprehensive Plan. The applicant's responses are attached as an exhibit to the staff report; staff responses are below.

- 1) How conditions on the subject site, adjacent properties, and the immediate area have changed?

Applicant:

"The subject site already holds partial CS zoning, and the area along Edison St is primed for Commercial, with new facilities opening (ie John 3:16) and street widening underway. Adjusting the comp plan to allow for CS use of the property is a natural progression of the current flow."

Staff Response:

The subject site is partially zoned Commercial Shopping; however, the land use designation is entirely Neighborhood. The subject site is a large and unusually shaped parcel with structures that appear to have been unoccupied for many years. North of the subject property is an area designated as Local Center and Neighborhood designations exist to the west, south, and north. Houses have been constructed across N 39th W Ave from the east side of the subject property.

- 2) How have changes affected the subject site to warrant the proposed amendment?

Applicant:

"They have positioned this site, along Edison, as a CS use case first and foremost."

Staff Response:

The lot is large compared to others in the immediate area and has an unusual configuration with frontage on both the secondary arterial of W Edison St to the north and the unclassified N 39th W Ave to the east and a large area on the interior of the block. A MetroLink bus route crosses the nearby intersection of W Edison St and N 41st W Avenue.

- 3) How the proposed change will further other City of Tulsa goals, strategies, and actions as outlined in the Comprehensive Plan?

Applicant:

"The unification to CS zoning and approval of Multiple Use will enrich the opportunity for the area to see new development, bring fresh interest to the area, and grow the taxable income of the district to allow for further improvements in the future."

Staff Response:Future Land Use

- GOAL LU 3 - Economic development is facilitated at the neighborhood, city, and regional scales.
 - STRATEGY LU 3.2 - Focus regional investments along major transportation corridors, including highways and public transit routes.
 - ACTION LU 3.2.1 - Direct the majority of employment growth and change to areas of the city with access to major transportation infrastructure, such as highways, railroads, public transportation, the airport, and the Tulsa Ports.
 - STRATEGY LU 3.6 - Encourage development that fills existing market gaps and provides for the necessities of life.
- GOAL LU 4 - Redevelopment, revitalization, and enhancement programs are focused in areas that have been economically disadvantaged.
 - STRATEGY LU 4.4 - Promote the adaptive reuse and rehabilitation of vacant or underutilized structures and buildable land to aid the revitalization of area neighborhoods and development of affordable housing.
- GOAL LU 5 - Tulsa's neighborhoods are recognized for distinct characteristics, and development occurs with sensitivity to local context.
 - STRATEGY LU 5.3 - Ensure appropriate transitions are provided between nonresidential and residential uses.
 - ACTION LU 5.3.1 - Encourage infill development that adds complementary uses and is compatible in form and scale to the immediate surrounding development.
 - STRATEGY LU 5.3.2 - Promote building and massing guidance for commercial and office uses adjacent to neighborhoods to ensure they are neighborhood scale, well designed, appropriately located, and consistent with the existing development context.
 - STRATEGY LU 5.3.5 - Encourage landscape design and site improvements that complement the appearance of surrounding land uses.
- GOAL LU 6 - Commercial areas and activity centers complement their surrounding uses.
 - STRATEGY LU 6.1 - Accommodate reasonable commercial development along Main Streets and other commercial corridors.
 - ACTION LU 6.1.3 - Incorporate design guidelines into development plans to minimize negative impacts on adjoining neighborhoods by blending edge conditions through the diversification of land uses and housing choices.
- GOAL LU 7 - Residential and mixed-use areas are well connected to surrounding land uses.
 - STRATEGY LU 7.4 - Incorporate appropriate uses that support residents' daily needs into predominantly residential areas.
- GOAL 10 - Future growth is balanced with the ability to provide public services and infrastructure.
 - STRATEGY LU 10.2 - Prioritize compact development and infill development for more efficient use of existing infrastructure and services.

Transportation

- STRATEGY TR 5.2 - Ensure land use decisions are reflective of and responsive to the transportation infrastructure context.
 - ACTION HN 5.2.1 - Encourage compact and infill development to optimize the use of existing infrastructure.

Economic Development

- GOAL ED 4 - New development supports vibrant, sustainable, transit-oriented communities.
 - STRATEGY ED 4.1 - Encourage infill development in areas served by public transportation.
 - STRATEGY ED 4.2 - Ensure that new employment development is well-connected to multimodal transportation networks.
 - ACTION ED 4.2.5 - Encourage business expansion along transit routes to increase the amount of goods and services available to riders.

Housing & Neighborhoods

- STRATEGY HN 1.2 - Address dilapidated structures, vacancy, and abandonment as priorities for improving the quality of neighborhoods.
- STRATEGY HN 3.2 - Ensure housing is well connected to basic services and land uses that support residents' daily needs.
 - ACTION HN 3.2.1 - Incentivize property owners to pursue zoning that permits residential density and infill in well-connected centers and corridors that is consistent in scale with surrounding property.

Public Services

- GOAL PS 1 - Tulsa's land use pattern enables efficient and cost-effective distribution of public services.
 - STRATEGY PS 1.3 - Encourage infill development or development that is currently served by existing City services and infrastructure.

The Comprehensive Plan supports infill development and land uses that supply the daily needs of nearby residential areas, and the proximity of public transit lends support to the greater intensity of uses the Multiple Use designation will allow. Other guidance from the Comprehensive plan recommends transitions of appropriate form and scale with the surrounding neighborhood context.

Concluding Statement:

With consideration given to the factors listed herein, staff recommends **approval** of the proposed land use designation.

Land Use Plan Designation

Existing:

Neighborhoods are mostly residential uses, which includes detached, missing middle, and multi-dwelling unit housing types. Churches, schools, and other low intensity uses that support residents' daily needs are often acceptable, particularly for properties abutting Multiple Use, Local Center, or Regional Center land use areas. Multi-dwelling unit housing that takes access off an arterial is considered Multiple Use, Local Center, or Regional Center. If a multi-dwelling unit housing property takes access from a lower-order street separated from the arterial, then it would be considered Neighborhood.

Proposed:

Multiple Use areas are mostly commercial or retail uses, which include restaurants, shops, services, and smaller format employment uses. This land use designation is most common in areas of the city from earlier development patterns, with Local Centers being more commonplace in newer parts of the city. For single properties that are commercial but surrounded by Neighborhood, Multiple Use is the preferred designation.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	CS	Local Center/Neighborhood	Commercial/Vacant
East	CS/RS-3	Neighborhood	Residential/Commercial
South	RS-3	Neighborhood	Residential
West	CS/RS-3	Neighborhood	Residential/Commercial

Small Area Plans

The subject property is in the Charles Page Boulevard Small Area Plan which is only applicable for development review.

Development Era

The subject property is in an area developed during the Streetcar Era (1910s-30s), prior to the proliferation of automobiles, when streetcars facilitated growth beyond downtown. Land uses range from fully integrated to somewhat separated, on a half-mile grid, with a mix of housing options. Priorities in these areas include walkability, bikeability, access to public transit, historic preservation, housing type variety, mixed-use development, transit-oriented development, commercial districts, and well-designed streetscapes.

TransportationMajor Street & Highway Plan:

W Edison Street is classified as a Second Arterial. N 41st West Avenue and S 41st East Avenue are classified as Residential Collectors. N 39th West Avenue is unclassified.

Comprehensive Plan Street Designation:

none

Commission Action

Motion: To continue item 12 to June 3, 2026.

Motion by: Hood Second by: Bulmash

Vote: 5-2-0

Ayes: Bulmash, Hood, Krug, Shivel, Walker

Nays: Humphrey, Whitlock

Abstentions: none

Absent: Craddock, Cue, Fugate, Turner-Addison

Public Hearing – Plats

13. Project Anthem

Location: West of the Creek Turnpike between East 11th Street South and East 21st Street South

City Council District: 6

Applicant: Olsson Inc, John Flazxbeard

Action Requested: Approval of Preliminary Plat Extension

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Approve the preliminary subdivision plat extension for Project Anthem to August 7, 2027, per staff's recommendation.

Motion by: Bulmash Second by: Whitlock

Vote: 6-0-0

Ayes: Bulmash, Hood, Humphrey, Shivel, Walker, Whitlock

Nays: none

Abstentions: none

Absent: Craddock, Cue, Fugate, Krug, Turner-Addison

14. Project Anthem

Location: West of the Creek Turnpike between East 11th Street South and East 21st Street South

City Council District: 6

Applicant: Fortis Construction, Paul Shaw

Action Requested: Accelerated Release of a Building Permit

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Approve the Accelerated Release of a Building Permit for Project Anthem, per plans submitted at Planning Commission.

Motion by: Bulmash Second by: Shivel

Vote: 6-0-0

Ayes: Bulmash, Hood, Humphrey, Shivel, Walker, Whitlock

Nays: none

Abstentions: none

Absent: Craddock, Cue, Fugate, Krug, Turner-Addison

Item 15 continued to June 3, 2026, after Mr. Humphrey stated he needed to recuse himself and that recusal broke quorum. Therefore, a motion was made to continue item 15 to June 3, 2026. Mr. Humphrey participated in the vote for the continuance.

15. The Estates West (County)

Location: Southwest corner of East 86th Street North and Yale Avenue

City Council District: 1

Applicant: AAB Engineering

Action Requested: Approval of Re-Plat to change the name of the previously approved Subdivision plat for a single-family subdivision

Staff Recommendation

West Estates - (County)

Southwest Corner of East 86th Street North and North Yale Ave

This plat consists of 28 lots, 2 blocks on 20.06 ± acres.

The Technical Advisory Committee (TAC) met on March 7, 2024, and provided the following comments:

1. **Zoning:** Proposed lots conforms to the requirements of the CS district. Planning Services will provide comments prior to final plat release.
2. **Addressing:** INCOG will assign addresses. Include assigned addresses on face of the final plat and provide address disclaimer.
3. **Transportation & Traffic:** Final street construction plans must be approved by the County Engineer and installed prior to final plat release.
4. **Sewer/Water:** On-site sewage disposal via ODEQ approved system. Water line plans must be submitted to Rural Water District No. 3, Washington County. All requirements of the district must be met for final plat approval.
5. **Stormwater, Drainage, & Floodplain:** Plans for stormwater and drainage must be approved by the Tulsa County Engineer and improvements must be in place prior to final plat approval. Provide access to reserve area for maintenance.
6. **Utilities: Telephone, Electric, Gas, Cable, Pipeline, Others:** All utilities indicated to serve the site must provide a release prior to final plat approval. Provide a Certificate of Records Search from the Oklahoma Corporation Commission to verify no oil & gas activity on the site.

Staff recommends **APPROVAL** of the preliminary subdivision plat subject to the conditions provided by TAC and all other requirements of the Subdivision and Development Regulations. Tulsa County release is required prior to final plat approval.

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: To continue item 15 to June 3, 2026.

Motion by: Bulmash Second by: Hood

Vote: 6-0-0

Ayes: Bulmash, Hood, Humphrey, Shivel, Walker, Whitlock

Nays: none

Abstentions: none

Absent: Craddock, Cue, Fugate, Krug, Turner-Addison

DRAFT

Other Business

None

16. Commissioner Comments

None

Adjournment

Commission Action

Motion: Adjourn

Motion by: Walker Second by: Whitlock

Vote: 6-0-0

Ayes: Bulmash, Hood, Humphrey, Shivel, Walker, Whitlock

Nays: none

Abstentions: none

Absent: Craddock, Cue, Fugate, Krug, Turner-Addison

There being no further business, the meeting adjourned at 2:50 p.m.